



**JABATAN PEMBANGUNAN KEMAHIRAN
KEMENTERIAN SUMBER MANUSIA
ARAS 7 & 8 BLOK D4, KOMPLEKS D
PUSAT PENTADBIRAN KERAJAAN PERSEKUTUAN
62530 PUTRAJAYA**

KERTAS PENERANGAN (*INFORMATION SHEET*)

KOD DAN NAMA PROGRAM / <i>PROGRAM'S CODE AND NAME</i>	Z-009-1:2015CORE ABILITIES	
TAHAP / LEVEL	1 (ONE)	
NO. DAN TAJUK KEBOLEHAN TERAS / <i>CORE ABILITY NO. AND TITLE</i>	CA04 HEALTH, SAFETY AND ENVIRONMENTAL AWARENESS	
NO. DAN PENYATAAN KEBOLEHAN / <i>ABILITY NO. AND STATEMENT</i>	4.1 ADHERE TO HEALTH AWARENESS ACTIVITY 4.2 ADHERE TO SAFETY AWARENESS ACTIVITY 4.3 ADHERE TO ENVIRONMENTAL AWARENESS ACTIVITY	
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TAJUK/TITLE: SALIENT PROVISION OF OCCUPATIONAL SAFETY AND HEALTH (OSH) LEGISLATION

TUJUAN/PURPOSE:

This Information Sheet is intended to describe on the Salient Provision of Occupational Safety and Health (OSH) Legislation. The person who is competent in this CA shall be able to abide to Health, Safety and Environmental rules and regulations, hence reducing exposure to hazards and risks as well as incidence of work-related injury and illness.

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PENERANGAN/INFORMATION:

1. Important Of OSH Implementation

In today's world, rapid economic development has not only led to significant improvements in incomes and the quality of life, but also resulted in great increases in the number of people killed and injured at work. For decades, industries have embraced many systems to minimize workplace accidents and incidents, yet despite the best intention, there has been little reduction in the rate at which people are killed or injured at work. Similar scenario prevails in Malaysia, when statistics from the Social Security Organisation (SOCSO) reports indicated that although the number of occupational accidents has reduced gradually, workers especially those in the manufacturing sector still suffer a high level of occupational accidents almost every year. To overcome this problem, the government has come out with a legislative framework to deal with this situation.

Occupational Safety and Health (OSH) standards are mandatory rules and standards, set and enforced to eliminate or reduce OSH hazards in the workplace. OSH standards aim to provide at least the minimum acceptable degree of protection that must be afforded to every worker in relation to the working conditions and dangers of injury, sickness or death that may arise by reason of his or her occupation.

The provision of OSH standards by the state is an exercise of the police power, with the intention of promoting welfare and well-being of workers. Among some of the real problems raised by OSH experts surrounding the effective implementation of work safety and health in this region according to a study in 2003 are such as lack of concern by management; lack of awareness and trained OSH personnel; and weak enforcement of OSH standards. In 2013 alone, SOCSO had paid out RM 1.7billion in compensation to workers who were involved in industrial accidents compared to RM 1.6 billion in 2012.

In addition the safety and health problems are exacerbated when looked at in relation to the companies that are involved in the manufacturing sector which is complex in its structure. The majority of the firms involved are in the small and medium-scale industries where the unionization of workers is low or absent. Further, some of these small-scale industries are family-owned businesses with family labour. Additionally there are home-based industrial activities which provide services to the larger manufacturing industries, e.g. assembly of components at home. It is impossible to

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expect the enforcement or compliance of standards of occupational safety and health at these kinds of work establishment.

2. Salient Provision Of Occupational Safety And Health Act 1994

2.1 Objective of the Act

- a) for securing the safety, health and welfare of persons at work;
- b) protect persons at a place of work other than employees;
- c) promote a suitable environment for persons at work;
- d) enable previous legislation to be replaced by regulations and approved industry codes of practice operating in combination with the OSH Act 1994

2.2 Definition

"employee" - means a person who is employed for wages under a contract of service on or in connection with the work of an industry to which this Act applies and-

- (a) who is directly employed by the principal employer on any work of, or incidental or, preliminary to or connected with the work of, the industry, whether such work is done by the employee at the place of work or elsewhere;
- (b) who is employed by or through an immediate employer at the place of work of the industry or under the supervision of the principal employer or his agent on work which is ordinarily part of the work of the industry or which is preliminary to the work carried on in or incidental to the purpose of the industry; or
- (c) whose services are temporarily lent or let on hire to the principal employer by the person with whom the person whose services are so lent or let on hire has entered into a contract of service;

"employer" - means the immediate employer or the principal employer or both;

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"immediate employer" - in relation to employees employed by or through him, means a person who has undertaken the execution at the place of work where the principal employer is carrying on his trade, business, profession, vocation, occupation or calling, or under the supervision of the principal employer or his agent, of the whole or any part of any work which is ordinarily part of the work of the trade, business, profession, vocation, occupation or calling of the principal employer or is preliminary to the work carried on in, or incidental to the purpose of, any such trade, business, profession, vocation, occupation or calling, and includes a person by whom the services of an employee who has entered into a contract of service with him are temporarily lent or let on hire to the principal employer.

2.3 Duties of employee

Duties of employees:

- a) take reasonable care of his own safety and health and others that may be affected by his actions;
- b) cooperate with his employer to comply by the Act and its regulations;
- c) wear or use protective equipment provided by the employer;
- d) comply with instructions instituted by the employer on occupational safety and health.

3. Salient Provision Of Factories And Machinery Act 1967

Section 10. Provisions relating to safety, etc.

Without prejudice to any law with respect to local authorities, in respect of any factory, the following provisions relating to safety shall apply:

- (a) foundations and floors shall be of sufficient strength to sustain the loads for which they are designed; and no foundation or floor shall be overloaded;
- (b) roofs shall be of sufficient strength to carry where necessary suspended loads;

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- (c) all floors, working levels, platforms, decks, stairways, passages, gangways, ladders and steps shall be of safe construction so as to prevent a risk of persons falling, and structurally sound so as to prevent a risk of collapse, and shall be properly maintained and kept, as far as reasonably practicable, free from any loose material and in a non-slippery condition;
- (d) such means as are reasonably practicable shall be provided, maintained, and used so as to ensure safe access to any place at which any person has at any time to work;
- (e) every opening, sump, pit or fixed vessel in a floor, or working level shall be securely covered or securely fenced so as to prevent risk of persons falling; and
- (f) all goods, articles and substances which are stored or stacked shall be so placed or stacked-
 - (i) in such manner as will best ensure stability and prevent any collapse of the goods, articles or substances or their supports; and
 - (ii) in such a manner as not to interfere with the adequate distribution of light, adequate ventilation, proper operation of machinery, the unobstructed use of passageways or gangways and the efficient functioning or use of fire-fighting equipment.

Section 15. Dangerous parts of machinery.

Every dangerous part of any machinery shall be securely fenced unless it is in such a position or of such construction as to be as safe to every person employed or working on or entering into the premises as it would be if securely fenced: Provided that so far as the safety of a dangerous part of any machinery cannot by reason of the nature of the operation be secured by means of a fixed guard the requirements of this section shall be deemed to have been complied with if a device is provided which automatically prevents the operator from coming or being brought into contact with that part.

Section 20. Duties of persons employed.

- (1) No person employed in any factory or in any place where any machinery is installed shall wilfully interfere with or misuse any means, appliance, convenience or other thing provided in pursuance of this Act for securing the

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safety, health or welfare of the persons employed in the factory or the place where the machinery is installed; and when any means or appliance for securing safety, health or welfare is provided for the use of the person under this Act, he shall make use of such means or such appliance.

- (2) No person employed in any factory or in any place where any machinery is installed shall wilfully and without reasonable cause act in any manner so as to cause or to be likely to cause bodily injury to himself or other persons or damage to any machinery or other property.

Section 22. Provisions relating to health.

- (1) Without prejudice to any law relating to public health, in respect of any factory the following provisions relating to health of persons shall apply:
- (a) every factory shall be kept in a clean state and free from offensive effluvia arising from any drain, sanitary convenience or other source and shall be cleaned at such times and by such methods as may be prescribed and these methods may include lime-washing or colour washing, painting, varnishing, disinfecting or deodorising;
 - (b) the maximum number of persons employed at any one time in any workroom in any factory shall be such that the amount of cubic feet of space and the superficial feet of floor area allowed in the workroom for each such person are not less than the amount of cubic feet of space and the superficial feet of floor area prescribed either federally or for the particular class of work carried on in the workroom;
 - (c) (i) effective and suitable provision shall be made for securing and maintaining adequate ventilation by the circulation of fresh air in every part of a factory and for rendering harmless, so far as practicable, all gases, fumes, dust and other impurities that may be injurious to health arising in the course of any process or work carried on in a factory;

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(ii) the Minister may prescribe a standard of adequate ventilation and the means by which the standard may be achieved, for factories or for any class or description of factory or parts thereof;

(d) (i) effective and suitable provision shall be made for securing and maintaining such temperature as will ensure to any person employed in a factory reasonable conditions of comfort and prevention from bodily injury;

(ii) the Minister may for factories or for any class of factory or parts thereof prescribe a standard of reasonable temperature and prohibit the use of any methods of maintaining a reasonable temperature which in his opinion are likely to be injurious to the persons employed and direct that thermometers shall be provided and maintained in such places and positions as may be specified;

(e) (i) effective provision shall be made for securing and maintaining sufficient and suitable lighting, whether natural or artificial, in every part of a factory in which persons are working or passing;

(ii) the Minister may prescribe a standard of sufficient and suitable lighting for factories or for any class or description of factory or parts thereof or for any process; and

(f) sufficient and suitable sanitary conveniences as may be prescribed shall be provided and maintained for the use of persons in a factory.

(2) (a) Whenever it appears to an Inspector that any process in any factory is likely to affect adversely the health of any person employed therein or the public he shall report the circumstances in writing to the Chief Inspector who may thereupon carry out such investigations as he may consider necessary.

(b) Where the Chief Inspector is satisfied-

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- (i) that such a process is likely to affect adversely the health of any person employed in the factory or the public; and
 - (ii) that the process can be modified or means provided to reduce the possibility of injury to the health of such person or the public as aforesaid, he shall, after considering any representations made by the occupier of the factory, order that the process be modified in such manner or that such means be provided as he may direct to reduce the possibility of injury to the health of that person or the public.
- (c) Any person aggrieved by an order made under paragraph (b) may within twenty-one days of the receipt thereof appeal to the Minister who shall make such order thereon as he deems fit.
- (d) Where the Chief Inspector is satisfied-
- (i) that such a process is likely to affect adversely the health of any person employed in the factory or the public; and
 - (ii) that the process cannot be modified or means provided to reduce the possibility of injury to the health of such person or the public as aforesaid, he shall report the circumstances in writing to the Minister.
- (e) The Minister may upon receipt of the report either-
- (i) make such regulations controlling or prohibiting the use of the process as he may consider reasonable; or
 - (ii) after considering any representations made by any person likely to be affected thereby by writing under his hand prohibit the carrying out of the process either absolutely or conditionally or the use of any material or substance in connection therewith.

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(f) For the purpose of enabling any occupier of a factory or other person to make representations in respect of a proposed order or prohibition under paragraph (b) or (e) the Chief Inspector or the Minister as the case may be, shall cause to be served on the occupier or other person a notice specifying the period within which such representations may be made and containing such particulars as the Chief Inspector or the Minister as the case may be considers adequate in the circumstances.

(3) An Inspector may require any person employed in any factory in which any of the diseases named in the Third Schedule has occurred, or is likely to occur, to be medically examined.

Section 24. Personal protective clothing and appliances.

Where in any factory persons are exposed to a wet or dusty process, to noise, to heat or to any poisonous, corrosive or other injurious substance which is liable to cause bodily injury to those persons the Minister may prescribe the provision and maintenance for use of those persons suitable and adequate personal protective clothing and appliances including where necessary goggles, gloves, leggings, caps, foot-wear and protective ointment or lotion.

Section 25. Provisions relating to welfare.

(1) In respect of any factory, the following provisions relating to welfare of persons shall apply:

(a) there shall be provided and maintained for the use of persons employed therein-

(i) adequate and suitable accommodation for clothing not worn during working hours; and

(ii) such arrangements as are reasonably practicable for drying that clothing.

(b) there shall be provided and maintained at suitable places reasonably accessible to all persons employed therein-

(i) an adequate supply of safe and wholesome drinking water; and

(ii) adequate and suitable facilities for washing which shall be kept in a clean condition; and

(c) there shall be provided and maintained so as to be readily accessible a first-aid box or cupboard of the prescribed standard and when more than one hundred and fifty persons are employed at any one time a suitable first-aid room of the prescribed standard shall also be provided and maintained.

(2) The Minister may for factories or for any class of factory or parts thereof prescribe standards for compliance in respect of all the provisions in the foregoing subsection relating to welfare of persons employed

SOALAN/QUESTION:

1. Why safety and health is important to the employees?

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2. Name four of duties of employees at the work place as stipulated by OSHA Act 1994?

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3. What Act other than OSHA Act cover of safety and health at work place?

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